

Rajasthan Laws Repealing Act, 2015

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State of Rajasthan - Act

Rajasthan Laws Repealing Act, 2015

RAJASTHAN

India

Rajasthan Laws Repealing Act, 2015

Act 35 of 2015

Published on 20 October 2015

Commenced on 20 October 2015

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Rajasthan Laws Repealing Act, 2015

(Act

No. 35 of 2015

)

Statement of Objects and Reasons. - The State Government's endeavor to bring reform in the legal system of the State, to make it more accessible to the common man and to imbibe the principles of rule of law, has, inter-alia, began with the review of enactments which are obsolete and redundant or retention whereof as separate Acts are unnecessary.

In fulfillment of this objective, the State Government has undertaken a comprehensive review of laws and the legal system with a view to remove incoherent and redundant laws.

The primary initiative in this direction was taken by constituting a Committee consisting of three members to review the laws which are obsolete and redundant or retention whereof as separate Acts are unnecessary and that can be

repealed. The Committee, in consultation with the all administrative departments, identified certain Principal Acts and Amending Acts lying on the Statute-Book which are not relevant or no longer needed and which can be repealed.

The Administrative Departments concerned at their own level examined all the existing Acts pertaining to them and after taking decision at appropriate level, conveyed their concurrence to repeal 248 principal Acts as well as amending Acts which are obsolete and redundant or retention whereof as separate Acts are unnecessary and can be repealed.

As part of the ongoing initiative of the State Government, the present proposal is to repeal 248 such Acts enumerated in the Schedule of the Bill. An appropriate saving clause has been incorporated in the Bill. On being enacted, it would reduce obsolete laws and bring in clarity to those for whose benefit the laws are enacted.

The Bill seeks to achieve the aforesaid objectives.

Hence the Bill.

[Dated 20.10.2015]

[Received the assent of the Governor on the 15th day of October, 2015]

An Act to repeal certain laws.

Be it enacted by the Rajasthan State Legislature in the Sixty-sixth Year of the Republic of India as follows: -

1.

Short title and commencement.

(1)

This Act may be called the Rajasthan Laws Repealing Act, 2015.

(2)

It shall come into force at once.

2.

Repeal of certain laws.

- The laws specified in the Schedule are hereby repealed as a whole.

3.

Savings.

(1)

The repeal by this Act of any law shall not affect any other law in which the law hereby repealed has been applied, incorporated or referred to.

(2)

This Act shall not affect the previous operation of any law hereby repealed or the validity, invalidity, effect or consequence of anything already done or suffered thereunder or any right, title, privilege, obligation or liability already acquired, accrued or incurred thereunder or any investigation, remedy or proceeding in respect thereof or any release or discharge of or from any debt, penalty, obligation, liability, claim or demand, or any indemnity already granted, or the proof of any past act or thing.

(3)

This Act shall not affect any principle or rule of law, or established jurisdiction, form or course of pleading, practice or procedure, or any existing usage, custom, privilege, restriction, exemption, office or appointment, notwithstanding that the same respectively may have been in any manner affirmed, or recognized or derived by, in or from any law hereby repealed.

(4)

The repeal by this Act of any law shall not revive or restore any jurisdiction, office, custom, liability, right, title, privilege, restriction, exemption, usage, practice, procedure or other matter or thing not existing or in force on the date on which this Act comes into force.

(5)

For the removal of doubt it is hereby declared that, where this Act repeals any law by which the text of any other law was amended, whether retrospectively or prospectively, by the express omission, insertion or substitution of any matter, the repeal shall not affect the past existence and further continuance of any such amendment made by the law so repealed and in operation at the commencement of this Act.

Schedule

[See Section 2]

S. N.

Year

Act No.

Short Title of Acts

1

2

3

4

1.

1950

4

The Rajasthan Preservation of Certain Animals

Act, 1950

2.

1950

G

The Rajasthan Prevention of Juveniles Smoking

Act, 1950

3.

1951

5

The Rajasthan Rehabilitation Loans Act, 1951

4.

1953

12

The Rajasthan Minor Irrigation Works Act, 1953

5.

1953

15

The Rajasthan Evacuee Interest (Separation)

Supplementary Act, 1953

6.

1953

19

The Rajasthan Lands Summary Settlement Act, 1953

7.

1953

23

The Rajasthan Agricultural Income-tax Act, 1953

8.

1953

25

The Rajasthan Lands Special Irrigation Charges

Act, 1953

9.

1954

9

The Rajasthan Rent Rates Determination and

Validation Act, 1954

10.

1955

7

The Rajasthan Finance (Agricultural Income Tax)
Act, 1955
11.
1955
12
The Rajasthan Anti Ejection Officers Proceedings
and Decisions (Validation) Act, 1955
12.
1956
10
The Rajasthan Finance (Agricultural Income Tax)
Act, 1956
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1956
33
The Rajasthan Mining Settlement Act, 1956
14.
1957
17
The Rajasthan Vaccination Act, 1957
15.
1957
18
The Rajasthan Finance (Agricultural Income Tax)
Act, 1957
16.
1957
37
The Rajasthan Review and Validation of Rent
Rates (Revival) Repeal Act, 1957
17.
1957
39
The Fraser Bridge Toll Tax Validation Act, 1957
18.
1958
17
The Rajasthan Finance (Agricultural Income Tax)
Act, 1958
19.
1958
20
The Rajasthan Haq-I-Malikana Abolition Act, 1958
20.
1958
45
The Rajasthan Livestock Improvement Act, 1958
21.
1958
25
The Rajasthan Mica Act, 1958

22.
1958
33
The Rajasthan Registration of Births, Deaths and
Marriages Act, 1958
23.
1959
5
The Rajasthan Animal Diseases Act, 1959
24.
1959
16
The Rajasthan Finance (Agricultural Income Tax)
Act, 1959
25.
1959
36
The Rajasthan Settlement Rents Retrospective
Application (Validation) Act, 1959
26.
1959
39
The Rajasthan Transport Authorities
(Constitution and Proceedings) Validating Act, 1959
27.
1961
1
The Rajasthan Evacuee Interest (Separation)
Second Supplementary Act, 1961
28.
1961
35
The Rajasthan Kasar Bhom Abolition Act, 1961
29.
1962
4
The Rajasthan Arain Teshil (Continued Existence)
Validating Act, 1962.
30.
1962
8
The Rajasthan Divisional Commissioner (Office
Abolition) Act, 1962
31.
1963
1
The Rajasthan Veterinary Practitioners Act, 1962
32.
1963
22
The Rajasthan Ajmer Shamlat Committees

(Dissolutions) Act, 1963

33.

1964

14

The Rajasthan Gift Goods (Trade and Unlawful Possession) Act, 1964

34.

1964

31

The Rajasthan Primary Education Act, 1964

35.

1965

1

The Rajasthan Soil and Water Conservation Act, 1964

36.

1966

22

The Rajasthan Land Acquisition (Amendment and Validation) Act, 1966

37.

1969

12

The Rajasthan Holdings (Consolidation and Prevention of Fragmentation) (Amending and Validating) Act, 1969

38.

1971

11

The Rajasthan Government Servants Inquiries (Evidence of Corruption) Act, 1971

39.

1975

2

The Rajasthan Panchayati Raj Institutions (Extension of Term) Act, 1975

40.

1975

24

The Rajasthan Private Electric Supply Undertakings (Acquisition) Act, 1975

41.

1977

3

The Rajasthan Panchayat Samitis and Zila Parishads (Termination of Term) Act, 1977

42.

1977

5

The Rajasthan Finance Act, 1977

43.

1978

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The Rajasthan Finance Act, 1978

44.

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The Rajasthan Finance Act, 1979

45.

1980

29

The Rajasthan Appropriation (Vote on Account)
Act, 1980

46.

1980

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The Rajasthan Appropriation Act, 1980

47.

1982

2

The Rajasthan Panchayat (Extension of Term) Act,
1982

48.

1986

24

The Jaipur Metals and Electricals Limited
(Acquisition of Shares) Act, 1986

49.

1987

3

The Rajasthan Motor Vehicles Taxation (Amendment
and Validation) Act, 1987

50.

1987

11

The Rajasthan Shops and Commercial
Establishments (Employees Life Insurance) Act, 1987

51.

1987

16

The Rajasthan Validation of Execution of Certain
Leases, Licences and Agreements Act, 1987

52.

1988

3

The Rajasthan Finance Act, 1988

53.

1989

16

The Rajasthan Legislative Assembly (Officers and
Members Emoluments and Pension) (Amendment) Act, 1989.

54.

1993

1

The Rajasthan General Clauses (Amendment) Act,
1991.

55.

1993 (President Rule)

1

The Rajasthan Municipalities (Amendment) Act,
1993.

56.

1993

5

The Rajasthan Panchayat (Amendment) Act, 1993.

57.

1993

6

The Rajasthan Money Lenders (Amendment) Act,
1991.

58.

1993

13

The Rajasthan Appropriation (Vote on Account)
Act, 1993

59.

1993

14

The Rajasthan Appropriation Act, 1993

60.

1993

57

The Rajasthan Appropriation (No. 2) Act, 1993

61.

1994

1

The Rajasthan Municipalities (Amendment) Act,
1994.

62.

1994

2

The Rajasthan Civil Courts (Amendment) Act,
1994.

63.

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The Rajasthan Panchayat (Amendment) Act, 1994.

64.

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The Rajasthan Sales Tax (Amendment) Act, 1994.

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The Rajasthan Excise (Amendment) Act, 1994.

66.

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12

The Rajasthan Motor Vehicles Taxation
(Amendment) Act, 1994.

67.

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14

The Rajasthan Ministers' Salaries (Amendment)
Act, 1994.

68.

1994

15

The Rajasthan Legislative Assembly (Officers and
Members Emoluments and Pension) (Second Amendment) Act, 1994.

69.

1994

16

The Jaipur Development Authority (Amendment)
Act, 1994.

70.

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17

The Rajasthan Pass Book (Agricultural Holdings)
(Amendment) Act, 1994.

71.

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18

The Rajasthan Urban Improvement (Amendment) Act,
1994.

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The Rajasthan Municipalities (Second Amendment)
Act, 1994.

73.

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The Rajasthan Tenancy (Amendment) Act, 1994.

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The Rajasthan Municipalities (Third Amendment)
Act, 1994.

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The Rajasthan Panchayati Raj (Amendment) Act,
1994.

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The Rajasthan Tenancy (Amendment) Act, 1992.

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The Rajasthan Municipalities (Amendment) Act,

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The Rajasthan Panchayati Raj (Amendment) Act,

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The Rajasthan Land Revenue (Amendment) Act,

1995.

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The Rajasthan Motor Vehicles Taxation

(Amendment) Act, 1995.

81.

1995

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The Rajasthan Imposition of Ceiling on
Agricultural Holdings (Amendment) Act, 1995.

82.

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11

The Rajasthan Tenancy (Amendment) Act, 1995.

83.

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14

The Rajasthan Lands and Building Tax (Amendment)

Act, 1995.

84.

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15

The Rajasthan Electricity (Duty) (Amendment)

Act, 1995.

85.

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16

The Rajasthan Pass-Book (Agricultural Holdings)

(Amendment) Act, 1995.

86.

1995

17

The Rajasthan Societies Registration (Amendment)

Act, 1995.

87.

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18

The Rajasthan Legislative Assembly (Officers and Members Emoluments and Pension) (Amendment) Act, 1995.

88.

1995

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The Rajasthan Advocates Welfare Fund (Amendment) Act, 1995.

89.

1995

21

The Rajasthan Go-Seva Ayog Act, 1995

90.

1995

24

The Rajasthan University Teachers and Officers (/Selection for Appointment) (Amendment) Act, 1995.

91.

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The Rajasthan Cooperative Societies (Amendment) Act, 1995.

92.

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28

The Rajasthan Colonisation (Amendment) Act, 1995.

93.

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29

The Rajasthan Land Revenue (Second Amendment) Act, 1995.

94.

1995

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The Rajasthan Ministers' Salaries (Amendment) Act, 1995.

95.

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The Rajasthan Taxation Tribunal (Amendment) Act, 1996.

96.

1997

1

The Rajasthan Imposition of Ceiling on Agricultural Holdings (Amendment) Act, 1997.

97.

1997

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The Rajasthan Land Revenue (Amendment) Act,
1997.

98.

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The Rajasthan Tenancy (Amendment) Act, 1997.

99.

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The Rajasthan Agricultural Produce Markets
(Amendment) Act, 1997.

100.

1997

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The Rajasthan Finance Act, 1997

101.

1997

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The Rajasthan Public Premises (Eviction of
Unauthorised Occupants) (Amendment) Act, 1994.

102.

1998

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The Rajasthan Universities' Teachers and
Officers (Selection for Appointment) (Amendment) Act, 1998.

103.

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The Rajasthan Ministers' Salaries (Amendment)
Act, 1998.

104.

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The Rajasthan Legislative Assembly (Officers and
Members Emoluments and Pension) (Amendment) Act, 1998.

105.

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The Rajasthan Public Premises (Eviction of
Unauthorised Occupants) (Amendment) Act, 1997.

106.

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The Rajasthan Imposition of Ceiling on
Agricultural Holdings (Amendment) Act, 1998.

107.

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The Rajasthan Legislative Assembly (Officers and

Members Emoluments and Pension) (Amendment) Act, 1999.

108.

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The Rajasthan Ministers' Salaries (Amendment)

Act, 1999.

109.

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The Rajasthan Secondary Education (Amendment)

Act, 1999.

110.

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The Rajasthan Agricultural Produce Markets

(Amendment) Act, 1999.

111.

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The Rajasthan Panchayati Raj (Amendment) Act,

1999.

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The Rajasthan Ministers' Salaries (Second

Amendment) Act, 1999.

113.

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The Rajasthan Tenancy (Amendment) Act, 1999.

114.

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The Rajasthan Municipalities (Amendment) Act,

1999.

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The Rajasthan Relief Undertakings (Special

Provisions) (Amendment) Act, 1999.

116.

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21

The Rajasthan Laws (Amendment) Act, 1999.

117.

2000

1

The Jaipur Metals and Electricals Limited

(Acquisition of Shares) (Amendment) Act, 1997.

118.

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The Rajasthan Municipalities (Amendment) Act,
2000.

119.

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The Rajasthan Secondary Education (Amendment)
Act, 2000.

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The Rajasthan Excise (Amendment) Act, 2000.

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The Rajasthan Panchayati Raj (Amendment) Act,
2000.

122.

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The Rajasthan Tax on Luxuries (in Hotels and
Lodging Houses) (Amendment) Act, 2000.

123.

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The Rajasthan Urban Improvement (Amendment) Act,
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124.

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The Rajasthan Legislative Assembly (Officers and
Members Emoluments and Pension) (Amendment) Act, 2000.

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The Rajasthan Municipalities (Second Amendment)
Act, 2000.

126.

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The Rajasthan Municipalities (Third Amendment)
Act, 2000.

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The Jaipur Development Authority (Amendment)
Act, 2001.

128.

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The Rajasthan Land Revenue (Amendment) Act,

2002.

129.

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The Rajasthan Public Examination (Prevention of Unfairmeans) (Amendment) Act, 2001.

130.

2002

14

The Rajasthan Employment of Manual Scavengers and Construction of Dry Latrines (Prohibition) Act, 2000

131.

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The Rajasthan Municipalities (Amendment) Act,

2003.

132.

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The Rajasthan Finance Act, 2003

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The Rajasthan Universities' Teachers and Officers (Selection for Appointment) (Amendment) Act, 2003.

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The Rajasthan Sales Tax (Amendment) Act, 2003.

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The Rajasthan Advocates Welfare Fund (Amendment) Act, 2003.

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The Rajasthan Non-Government Educational Institutions (Amendment) Act, 2001.

137.

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The Rajasthan Co-operative Societies (Amendment) Act, 2003.

138.

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The Rajasthan Public Premises (Eviction of Unauthorised Occupants) (Amendment) Act, 2001.

139.

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The Rajasthan Warehouses (Amendment) Act, 2003.

140.

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The Rajasthan Non-Government Educational Institutions (Amendment) Act, 2003.

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The Rajasthan Municipalities (Amendment) Act, 2004.

142.

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The Rajasthan Sales Tax (Amendment) Act, 2004.

143.

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The Rajasthan Stamp (Amendment) Act, 2004.

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The Rajasthan Panchayati Raj (Amendment) Act, 2004.

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The Rajasthan Co-operative Societies (Amendment) Act, 2004.

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The Rajasthan Sanskrit University (Amendment) Act, 2004.

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The Rajasthan Urban Improvement (Amendment) Act, 2004.

148.

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The Rajasthan Agricultural Produce Markets (Amendment) Act, 2004.

149.

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The Rajasthan Civil Services (Service Matters Appellate Tribunals) (Amendment) Act, 2005.

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The Rajasthan Panchayati Raj (Amendment) Act,
2005.

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The Rajasthan Agricultural Produce Markets
(Amendment) Act, 2005.

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The Rajasthan Agricultural Produce Markets
(Second Amendment) Act, 2005.

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The Rajasthan Ministers' Salaries (Amendment)
Act, 2005.

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The Rajasthan Ministers' Salaries (Second
Amendment) Act, 2005.

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The Rajasthan Legislative Assembly (Officers and
Members Emoluments and Pension) (Amendment) Act, 2005.

156.

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The Rajasthan Civil Services (Service Matters
Appellate Tribunals) (Second Amendment) Act, 2005.

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The Rajasthan Rent Control (Amendment) Act,
2005.

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The Rajasthan Agricultural Produce Markets
(Third Amendment) Act, 2005.

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The Rajasthan Rent Control (Second Amendment)
Act, 2005.

160.

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The Rajasthan Monuments, Archaeological Sites and Antiquities (Amendment) Act, 2006.

161.

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The Rajasthan Municipalities (Amendment) Act, 2006.

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The Rajasthan Ministers' Salaries (Amendment) Act, 2006.

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The Rajasthan Legislative Assembly (Officers and Members Emoluments and Pension) (Amendment) Act, 2006.

164.

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The Rajasthan Civil Courts (Amendment) Act, 2006.

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The Rajasthan Value Added Tax (Amendment) Act, 2007.

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The Rajasthan Colonisation (Amendment) Act, 2007.

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The Rajasthan Excise (Amendment) Act, 2007.

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The Rajasthan Panchayati Raj (Amendment) Act, 2007.

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The Rajasthan Co-operative Societies (Amendment) Act, 2007.

170.

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The Rajasthan Monuments, Archaeological Sites

and Antiquities (Amendment) Act, 2007.

171.

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The Rajasthan Public Trusts (Amendment) Act,
2007.

172.

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The Rajasthan Panchayati Raj (Amendment) Act,
2008.

173.

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The Rajasthan Lokayukta and Up-Lokayuktas
(Amendment) Act, 2008.

174.

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The Rajasthan Panchayati Raj (Second Amendment)
Act, 2008.

175.

2008

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The Rajasthan Agricultural Produce Markets
(Amendment) Act, 2008.

176.

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The Rajasthan Bhoodan Yagna (Amendment) Act,
2008.

177.

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The Rajasthan Legislative Assembly (Officers and
Members Emoluments and Pension) (Amendment) Act, 2008.

178.

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The Rajasthan Khadi and Village Industries Board
(Amendment) Act, 2008.

179.

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The Rajasthan Value Added Tax (Amendment) Act,
2009.

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The Rajasthan Agricultural Produce Markets
(Amendment) Act, 2009.

181.
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The Rajasthan Panchayati Raj (Amendment) Act,
2009.
182.
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The Rajasthan Court Fees and Suits Valuation
(Amendment) Act, 2009.
183.
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The Rajasthan Appropriation (No. 1) Act, 2010
184.
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The Rajasthan Co-operative Societies (Amendment)
Act, 2010.
185.
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The Rajasthan Ministers' Salaries (Amendment)
Act, 2010.
186.
2010
12
The Rajasthan Legislative Assembly (Officers and
Members Emoluments and Pension) (Amendment) Act, 2010.
187.
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14
The Rajasthan Technical University (Amendment)
Act, 2010.
188.
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15
The Rajasthan Private Universities' Laws
(Amendment) Act, 2010.
189.
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16
The Jaipur Development Authority (Amendment)
Act, 2010.
190.
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17
The Jodhpur Development Authority (Amendment)
Act, 2010.
191.
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The Rajasthan. Urban Improvement (Amendment)
Act, 2010.

192.

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The Rajasthan Municipalities (Amendment) Act,
2010.

193.

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The Rajasthan-Panchayati Raj (Amendment) Act,
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The Rajasthan Panchayati Raj (Second Amendment)
Act, 2010.

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The Rajasthan Value Added Tax (Amendment) Act,
2010.

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The Rajasthan Municipalities (Amendment) Act,
2011.

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The Rajasthan Universities' Teachers and
Officers (Selection for Appointment) (Amendment) Act, 2011.

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The Rajasthan Agricultural Produce Markets
(Amendment) Act, 2011.

199.

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The Rajasthan Agricultural Produce Markets
(Second Amendment) Act, 2011.

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The Rajasthan Non-Government Educational
Institutions (Amendment) Act, 2011.

201.

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The Rajasthan Panchayati Raj (Amendment) Act,
2011.

202.

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The Rajasthan Fiscal Responsibility and Budget
Management (Amendment) Act, 2011.

203.

2011

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The Rajasthan Land Reforms and Resumption of
Jagirs (Amendment) Act, 2011.

204.

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The Rajasthan Tenancy (Amendment) Act, 2011.

205.

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14

The Rajasthan Land Revenue (Amendment) Act,
2011.

206.

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The Rajasthan Fiscal Responsibility and Budget
Management (Second Amendment) Act, 2011.

207.

2011

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The Rajasthan Urban Street Vendors (Protection
of Livelihood and Regulation of Street Vending) Act, 2011

208.

2011

28

The Rajasthan Rent Control (Amendment) Act,
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209.

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29

The Rajasthan Municipalities (Second Amendment)
Act, 2011.

210.

2012

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The Rajasthan Tenancy (Amendment) Act, 2010.

211.

2012

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The National Law University, Jodhpur (Amendment)
Act, 2012.

212.

2012

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The Rajasthan Private Universities' Laws
(Amendment) Act, 2012.

213.

2012

12

The Rajasthan Laws (Amendment) Act, 2012.

214.

2012

19

The Rajasthan Legislative Assembly (Officers and
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215.

2012

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The Rajasthan Ministers' Salaries (Amendment)
Act, 2012.

216.

2012

23

The Rajasthan Stamp (Amendment) Act, 2011.

217.

2012

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The Maharaja Ganga Singh University, Bikaner
(Amendment) Act, 2012.

218.

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The University of Kota (Amendment) Act, 2012.

219.

2012

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The Rajasthan Advocates Welfare Fund (Amendment)
Act, 2012.

220.

2012

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The Rajasthan Imposition of Ceiling on
Agricultural Holdings (Amendment) Act, 2010.

221.

2013

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The Rajasthan Private Universities' Laws
(Amendment) Act, 2013.

222.

2013

4

The Jai Narain Vyas University, Jodhpur
(Amendment) Act, 2013.

223.
2013
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The Vardhman Mahaveer Open University, Kota
(Amendment) Act, 2013.
224.
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The University of Rajasthan (Amendment) Act,
2013.
225.
2013
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The Maharshi Dayanand Saraswati University
(Amendment) Act, 2013.
226.
2013
8
The Rajasthan Universities' Teachers and
Officers (Selection for Appointment) (Amendment) Act, 2013.
227.
2013
9
The Mohan Lai Sukhadia University (Amendment)
Act, 2013.
228.
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The Rajasthan Panchayati Raj (Amendment) Act,
2013.
229.
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The Rajasthan Special Courts (Amendment) Act,
2013.
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13
The Rajasthan University of Health Sciences
(Amendment) Act. 2013.
231.
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15
The Rajasthan Forest (Amendment) Act, 2012.
232.
2013
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The Rajasthan Nurses, Midwives, Health Visitors
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